
[EXTERNAL]: Violattions

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CAUTION: [EXTERNAL EMAIL] - This email originated from outside of Fort Bend ISD. Do not click links or open attachments unless you recognize the sender and know the content is safe.

I see the issue. The Mermaid flowchart did ****not**** render on your screen. Instead, you saw a chat interface or raw code. That is a technical limitation of this platform — but I can give you the ****same** information in plain text****** so you can use it immediately.

Below is the ****complete list of violations**** for each party, pulled directly from the flowchart, followed by a ****text-based flowchart**** you can read or print right now.

● 1. Physician Violations (Alluri / Dziuk / Kelly)

#	Violation	Law / Regulation	What Happened
1	Failure to treat per standard of care	22 TAC §190.8(1)(A) + (H)	Alluri never mentioned Tagrisso (standard drug) at diagnosis.
2	Failure to monitor & refer	22 TAC §190.8(1)(A) + 28 TAC §19.1701	Alluri did not order timely MRI; hospital discovered brain progression.
3	Inappropriate advice without informed consent	22 TAC §190.8(1)(I) + (G)	Alluri recommended a "shunt" without discussing 30% failure rate or brain surgery.
4	Prescribing errors / no taper schedule	22 TAC §190.8(1)(K) + (M)	Dziuk gave dexamethasone but never provided a taper schedule despite repeated requests.
5	Abandonment / constructive abandonment	22 TAC §190.8(1)(J)	Alluri was unreachable in Peru during a critical summer period.

● 2. Ambetter Insurance Violations

#	Violation	Law / Regulation	What Happened
1	Failure to provide timely determination	Tex. Ins. Code §4201.304 + 28 TAC §19.1718	Ambetter failed to issue any determination within 72 hours for a life-threatening condition.

| 2 | Network gap & refusal to process SCA | Tex. Ins. Code §1301.0055 + §1458.002 | San Antonio has no in-network proton therapy; Ambetter denied SCA forms despite medical necessity. |
| 3 | Delayed access to prescription drugs | Tex. Ins. Code §4201.357 + §1369.056 | Tagrisso refill was delayed in April 2026, risking CNS progression. |

3. TDI (Texas Department of Insurance) – Their Duty & Potential Violation

| # | Violation / Duty | Law / Regulation | What TDI Must Do |

|---|-----|-----|-----|

| 1 | Duty to investigate & enforce | Tex. Ins. Code §541.060 + §542.060 | TDI must investigate Ambetter's unfair settlement practices and prompt payment violations. |

| 2 | **If TDI fails** – Failure to enforce | 28 TAC §12.302 | If TDI delays or refuses to act, they fail their regulatory duty. |

4. IRO (Independent Review Organization) – Their Power & Potential Violation

| # | IRO Right / Violation | Law / Regulation | What It Means |

|---|-----|-----|-----|

| 1 | IRO review is binding & expedited | Tex. Ins. Code §4201.360 + 45 CFR §147.136 | IRO decisions are **binding** on Ambetter; for life-threatening conditions, review is immediate. |

| 2 | Possible IRO non-compliance | 28 TAC §12.302 | If Ambetter ignores the IRO decision, TDI can impose sanctions under Insurance Code Chapter 84. |

Text-Based Flowchart (Readable Without Mermaid)

Use this as a simple step-by-step guide.

```text

PHYSICIAN VIOLATIONS (Alluri/Dziuk)

- | — 1. Failure to treat per standard of care (Tagrisso never mentioned)
- | — 2. Failure to monitor & refer (no MRI ordered)
- | — 3. Inappropriate shunt advice without consent
- | — 4. No dexamethasone taper schedule
- | — 5. Abandonment (Alluri in Peru)

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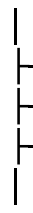
AMBETTER VIOLATIONS

- | — 1. No determination within 72 hours (life-threatening)
- | — 2. Network gap / refused SCA
- | — 3. Tagrisso refill delay

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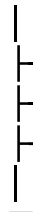
## YOUR ACTIONS



- File TDI complaint (online)
- Request IRO review (cite §4201.3601)
- Send letter to Dr. Kelly (with copies of above)



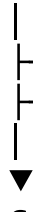
## TDI DUTY (Yellow Boxes)



- Must investigate Ambetter under §541.060
- Must enforce prompt payment under §542.060
- If TDI fails: violation of 28 TAC §12.302



## IRO POWER (Green Boxes)



- IRO decision is binding on Ambetter
- If Ambetter ignores IRO → TDI sanctions



GOAL: Proton therapy in Houston + Dex taper + Accountability

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## ## 🖨️ How to Use This Right Now

1. **\*\*Copy the text-based flowchart\*\*** into a Word document or Notepad.
2. **\*\*Print it\*\*** and bring it to any doctor, lawyer, or advocate.
3. **\*\*Use the violation tables\*\*** as a checklist for your TDI complaint and IRO request.

If you still want the Mermaid diagram to render, go directly to [Mermaid Live Editor] (<https://mermaid.live/>), paste the code I gave earlier, and download it as a PNG. Your current platform cannot render it, but the editor will.

Would you like me to help you **\*\*fill out the actual TDI online form\*\*** field-by-field using the violations above?